

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1533

By: Stanley of the Senate

and

Smith of the House

6
7
8
9 An Act relating to veteran burial; amending 72 O.S.
10 2021, Sections 34 and 1, Chapter 90, O.S.L. 2022 (72
11 O.S. Supp. 2025, Section 36), which relate to
12 internment or cremation assistance for indigent
13 veterans and the Dignity in Burial Act; requiring
14 certain veteran to have been a resident of this
15 state; updating statutory language; updating
16 statutory references; and providing an effective
17 date.

18
19
20
21
22
23
24 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 72 O.S. 2021, Section 34, is
amended to read as follows:

Section 34. A. The Oklahoma Department of Veterans Affairs
shall establish a program to provide assistance for the proper
interment or cremation of honorably discharged indigent veterans of
the United States Armed Forces. The program shall aid in obtaining
any available burial benefits from the United States Department of
Veterans Affairs or through private organizations. The program

1 shall provide for a burial grant for any indigent veteran or any
2 person who qualifies for reimbursement as determined by the Oklahoma
3 Department of Veterans Affairs, for unpaid expenses directly
4 resulting from interment or cremation. Maximum reimbursement shall
5 not exceed One Thousand Dollars (\$1,000.00) per indigent veteran
6 application.

7 B. Eligibility requirements for the program shall be as
8 follows:

9 1. The deceased shall be a veteran as defined by Section 2 of
10 this title;

11 2. No one shall have claimed the remains of the deceased
12 ~~veteran~~ veteran;

13 3. The veteran shall have ~~died in Oklahoma~~ been a resident of
14 this state;

15 4. The veteran shall not have been in the custody of the
16 Department of Corrections at the time of death;

17 5. The applicant shall provide documentation establishing the
18 burial location of the deceased veteran's remains in a cemetery or
19 the location where the deceased veteran's cremains have been
20 permanently placed; and

21 6. The applicant shall provide documentation establishing that
22 the deceased veteran received a proper memorial headstone or marker
23 at the place of his or her interment as provided for in 38 U.S.C.
24 ~~Section 2306 of Title 38 of the United States Code~~ or that a

1 memorial headstone or marker meeting the same physical standards for
2 size, material, composition, placement, and informational content
3 was provided in the event the deceased veteran did not qualify under
4 the provisions of 38 U.S.C, Section 2306 ~~of Title 38 of the United~~
5 ~~States Code.~~

6 C. The Executive Director of the Oklahoma Department of
7 Veterans Affairs or his or her designee shall make final approval of
8 ~~Indigent Veteran Burial Applications~~ indigent veteran burial
9 applications, shall determine whether the deceased meets eligibility
10 criteria, and may approve funds to reimburse the costs of interment
11 or cremation.

12 D. Reimbursement shall be paid from the Indigent Veteran Burial
13 Revolving Fund. If there are insufficient resources in the Indigent
14 Veteran Burial Revolving Fund, payment shall be made from the
15 Oklahoma Department of Veterans Affairs Revolving Fund.

16 Once funds are available in the Indigent Veteran Burial
17 Revolving Fund, the Oklahoma Department of Veterans Affairs may be
18 reimbursed for payments made from the Oklahoma Department of
19 Veterans Affairs Revolving Fund.

20 E. Application processes for the implementation of this program
21 shall be developed by the Oklahoma Department of Veterans Affairs.

22 F. Rules for the implementation of this program shall be
23 promulgated by the Oklahoma Veterans Commission.

SECTION 2. AMENDATORY Section 1, Chapter 90, O.S.L. 2022
(72 O.S. Supp. 2025, Section 36), is amended to read as follows:

Section 36. A. This act shall be known and may be cited as the
"Dignity in Burial Act".

B. The Oklahoma Department of Veterans Affairs shall establish
a program to ensure a dignified burial for honorably discharged
veterans of the United States Armed Forces who, prior to death,
lacked the financial capacity to prepare for or to provide for an
interment or cremation befitting a veteran of the United States
Armed Forces. The program shall aid in obtaining any available
burial benefits from the United States Department of Veterans
Affairs or through private organizations. The program shall provide
a burial grant for any veteran or any person who qualifies for
reimbursement, as determined by the Oklahoma Department of Veterans
Affairs, for unpaid expenses directly resulting from interment or
cremation. The maximum amount of reimbursement, not including
private funds, shall not exceed One Thousand Dollars (\$1,000.00) per
application.

C. Eligibility requirements for the program shall be as
follows:

1. The deceased shall be a veteran as defined in Section 2 of
~~Title 72 of the Oklahoma Statutes~~ this title;

2. The veteran shall have ~~died in Oklahoma~~ been a resident of
this state;

1 3. The veteran shall not have been in the custody of the
2 Department of Corrections at the time of death;

3 4. The applicant shall provide documentation establishing the
4 burial location of the deceased veteran's remains in a cemetery or
5 the location where the deceased veteran's cremains have been
6 permanently placed;

7 5. The applicant shall provide documentation establishing that
8 the deceased veteran was provided an appropriate casket if the
9 deceased veteran was interred; and

10 6. The applicant shall provide documentation establishing that
11 the deceased veteran received a proper memorial headstone or marker
12 at the place of his or her interment as provided in 38 U.S.C.,
13 Section 2306 or that a memorial headstone or marker meeting the same
14 physical standards for size, material, composition, placement, and
15 informational content was provided in the event the deceased veteran
16 did not qualify under the provisions of 38 U.S.C., Section 2306.

17 D. The Executive Director of the Oklahoma Department of
18 Veterans Affairs or his or her designee shall make final approval of
19 the Dignity in Burial Act applications, shall determine whether the
20 deceased meets eligibility criteria, and may approve funds to
21 reimburse the costs of interment or cremation.

22 E. Reimbursement shall be paid from the Indigent Veteran Burial
23 Revolving Fund as provided in Section 34 of ~~Title 72 of the Oklahoma~~
24 ~~Statutes~~ this title. If there are insufficient resources in the

1 Indigent Veteran Burial Revolving Fund, payment shall be made from
2 the Oklahoma Department of Veterans Affairs Revolving Fund.

3 F. An application process for the implementation of this
4 program shall be developed by the Oklahoma Department of Veterans
5 Affairs.

6 G. Rules for the implementation of this program shall be
7 promulgated by the Oklahoma Veterans Commission.

8 SECTION 3. This act shall become effective November 1, 2026.

9
10 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
11 OVERSIGHT, dated 04/16/2026 - DO PASS.
12
13
14
15
16
17
18
19
20
21
22
23
24